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ACT ON THE PREVENTION OF AND COUNTERMEASURES AGAINST VIOLENCE IN SCHOOLS

[Enforcement Date 01. Mar, 2020.] [Act No.16441, 20. Aug, 2019., Partial Amendment]

교육부 (학교생활문화과) , 044-203-6975

Article 1 (Purpose) The purpose of this Act is to protect the human rights of students and raise students as healthy members of society through the protection of victim students, the guidance and education of aggressor students, and mediation between victim students and aggressor students, by providing for matters necessary for the prevention of and countermeasures against violence in schools.

Article 2 (Definitions) The definitions of the terms used in this Act shall be as follows: <Amended by Act No. 9642, May 8, 2009; Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012>

1. The term "school violence" means any action committed against students inside or outside of school premises resulting in a physical or mental injury, or damage to property through a battery, assault, confinement, threat, kidnapping, abduction, defamation, insult, extortion, coercion, forced errand, sexual violence, bullying, or cyber-bullying, or with obscene or violent information via an information and communications network;
- 1-2. The term "bullying" means any form of constant or repeated actions whereby at least two students inflict physical or emotional harm on a specific student or a specific group of students inside or outside of school premises, and then inflict pain thereon;
- 1-3. The term "cyber-bullying" means any form of constant or repeated actions whereby students inflict emotional harm on other students by using the Internet, cell phones or other information and communications devices to reveal personal information about a specific student or to spread lies or rumors about a specific student, and then inflict pain thereon;
2. The term "school" means an elementary school, a middle school, a high school, a special school, and various schools as defined in Article 2 of the Elementary and Secondary Education Act and a school operated pursuant to Article 61 of the aforesaid Act;
3. The term "aggressor student" means a student who commits school violence or who takes part in such violence among aggressors;
4. The term "victim student" means a student who has sustained an injury resulting from school violence;
5. The term "disabled student" means a student requiring special education stipulated in Article 15 of the Act on Special Education for Persons with Disabilities, Etc. due to a physical, mental, or intellectual impairment.

Article 3 (Duty of Due Care in Interpretation and Application) Due care shall be exercised to avoid any undue infringement on citizens' rights in interpreting and applying this Act.

Article 4 (Responsibilities of State and Local Governments)(1) The State and each local government shall prepare legal and institutional systems necessary for surveys, research, education, and enlightenment for the purposes of preventing and eradicating school violence.

(2) The State and each local government shall encourage youth-related organizations and other non-governmental organizations to conduct autonomous activities for the prevention of school violence, the protection of victim students, and the guidance and education of aggressor students.

(3) The State and each local government shall endeavor to reflect recommendations of youth-related organizations and non-governmental organizations under paragraph (2) in relevant policies.

(4) The State and each local government shall provide administrative and financial support for fulfilling the responsibilities stipulated under paragraphs (1) through (3). [<Amended by Act No. 11388, Mar. 21, 2012>](#)

Article 5 (Relationships with Other Acts)(1) Regulation of school violence, protection of victim students, and measures against aggressor students shall be governed by this Act, except as otherwise expressly provided for in any other Act.

(2) Sexual violence referred to in subparagraph 1 of Article 2 shall not be governed by this Act, if applicable provisions exist in any other Act.

Article 6 (Formulation, etc. of Master Plans)(1) The Minister of Education shall set the policy goals and direction-setting for the prevention of and countermeasures against school violence to efficiently achieve the purpose of this Act and shall formulate and implement a master plan for the prevention of and countermeasures against school violence (hereinafter referred to as "master plan"), subject to deliberation by the Committee for Countermeasures against School Violence established under Article 7. [<Amended by Act No. 11388, Mar. 21, 2012; Act No. 11690, Mar. 23, 2013>](#)

(2) A master plan shall include the following matters and shall be formulated every five years. In such cases, the Minister of Education shall seek opinions from related central administrative agencies, etc.: [<Amended by Act No. 11388, Mar. 21, 2012; Act No. 11690, Mar. 23, 2013>](#)

1. Surveys, research, education, and enlightenment for eradicating school violence;
2. Assistance in treatment, rehabilitation, etc. of victim students;
3. Cooperation and assistance between administrative agencies and educational institutions in relation to school violence;
4. Placement of professional school counselors referred to in Article 14 (1), and administrative and financial support therefor;
5. Administrative and financial support for youth-related organizations (hereinafter referred to as "specialized organization") or experts that engage in the prevention of school violence, the cure of victim students, and the education of aggressor students;
6. Other matters necessary for the prevention of and countermeasures against school violence.

(3) The Minister of Education shall evaluate the performance of the offices of education established in each Special Metropolitan City, Metropolitan City, Special Self-Governing City, Do, or Special Self-Governing Province (hereinafter referred to as "City/ Do") with respect to the prevention of and countermeasures against school violence, and shall publish the outcomes of such evaluation, as prescribed by Presidential Decree. [<Newly Inserted by Act No. 11223, Jan. 26, 2012; Act No. 11690, Mar. 23, 2013>](#)

Article 7 (Establishment and Functions of Committee for Countermeasures against School Violence)The Committee for Countermeasures against School Violence (hereinafter referred to as the "Countermeasure Committee") shall be established under the jurisdiction of the Prime Minister to deliberate on the following matters: [<Amended by Act No. 11388, Mar. 21, 2012>](#)

1. Evaluation of the establishment and implementation of a master plan for the prevention of and countermeasures against school violence;
2. Matters requested by the head of a related central administrative agency or the head of a local government in relation to school violence;
3. Matters requested by an office of education, a regional committee for countermeasures against school violence under Article 9, a regional coordination committee for countermeasures against school violence under Article 10-2, an autonomous committee for countermeasures against school violence under Article 12, a specialized organization, or an expert specializing in school violence.

Article 7 (Establishment and Functions of Committee for Countermeasures against School Violence)A

Committee for Countermeasures against School Violence (hereinafter referred to as the "Countermeasure Committee") shall be established under the jurisdiction of the Prime Minister to deliberate on the following matters concerning the prevention of and countermeasures against school violence: [<Amended by Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

1. Evaluation of the formulation and implementation of a master plan for the prevention of and countermeasures against school violence;
2. Matters requested by the head of a related central administrative agency or the head of a local government in relation to school violence;
3. Matters requested by an office of education, a regional committee for countermeasures against school violence under Article 9, a regional coordination committee for countermeasures against school violence under Article 10-2, a deliberative committee to deal with school violence under Article 12, a specialized organization, or an expert specializing in school violence.

[Enforcement Date: Mar. 1, 2020] Article 7

Article 8 (Composition of Countermeasure Committee)(1) The Countermeasure Committee shall be comprised of not more than twenty members, including two chairpersons.

(2) The Prime Minister and a person commissioned by the President, from among those who have abundant knowledge and experience in countermeasures against school violence, shall be co-chairpersons, but a committee member designated by the Prime Minister shall act on behalf of co-chairpersons, if both of co-chairpersons are unable to perform their duties due to an extenuating circumstance.

(3) Committee members shall be commissioned by the President, from among the following persons: Provided, That a person falling under subparagraph 1 shall be commissioned as an ex officio member: [<Amended by Act No. 11690, Mar. 23, 2013; Act No. 12844, Nov. 19, 2014; Act No. 14839, Jul. 26, 2017>](#)

1. The Minister of Strategy and Finance, the Minister of Education, the Minister of Science and ICT, the Minister of Justice, the Minister of the Interior and Safety, the Minister of Culture, Sports and Tourism, the Minister of Health and Welfare, the Minister of Gender Equality and Family, the Chairperson of the Korea Communications Commission, and the Commissioner General of the Korean National Police Agency;
2. Each one person recommended by each of the committee members listed in subparagraph 1, from among experts with abundant knowledge and experience in countermeasures against school violence;
3. A Grade III public official of a relevant central administrative agency or a member of the Senior Executive Service in charge of affairs related to youth or medical care;
4. A current or former assistant professor or a person who is or was in a higher or equivalent position at a college or university or an officially recognized research institute who has expertise in school violence issues, counseling, or psychology related to such issues;
5. A judge, prosecutor, or attorney-at-law;

6. An expert in charge of activities for the protection of youth for at least five years in a specialized organization;
 7. A person who is licensed as a medical doctor;
 8. A parent who has abundant experience in the activities of a school steering committee or activities for the protection of youth.
- (4) The term of office of each committee member, including chairpersons, shall be two years, renewable for only one further term.
- (5) One executive secretary shall be assigned to efficiently perform affairs of the Committee and provide necessary support, and the Minister of Education shall serve as executive secretary. [<Amended by Act No. 11690, Mar. 23, 2013>](#)
- (6) A Working Committee for Countermeasures against School Violence (hereinafter referred to as "Working Committee") shall be established within the Countermeasure Committee to examine agenda items to be referred to the Countermeasure Committee for deliberation, to provide support necessary for deliberating on the agenda items, and to deliberate on agenda items delegated by the Countermeasure Committee.
- (7) Other matters necessary for the operation of the Countermeasure Committee and the organization and operation of the Working Committee shall be prescribed by Presidential Decree.
- [This Article Wholly Amended by Act No. 11388, Mar. 21, 2012]

Article 9 (Establishment of Regional Committees for Countermeasures against School Violence)⁽¹⁾

Each City/Do shall establish a regional committee for countermeasures against school violence (hereinafter referred to as "regional committee") to resolve school violence issues. [<Amended by Act No. 11223, Jan. 26, 2012>](#)

(2) The Special Metropolitan City Mayor, a Metropolitan City Mayor, a Special Self-Governing City Mayor, a Do Governor, or a Special Self-Governing Province Governor shall consult with the superintendent of education of the competent City/Do on the operation and activities of the competent regional committee and may establish a working subcommittee for the efficient operation of the regional committee. [<Amended by Act No. 11223, Jan. 26, 2012>](#)

(3) Each regional committee shall be comprised of no more than 11 members, including one chairperson.

(4) Matters necessary for the organization and operation of regional committees and working subcommittees under paragraph (2) shall be prescribed by Presidential Decree.

Article 10 (Functions of Regional Committees for Countermeasures against School Violence, etc.)⁽¹⁾

Each regional committee shall formulate measures for the prevention of school violence each year in line with the master plan.

(2) A regional committee may request the competent superintendent of education or the commissioner of the competent district police agency to provide data related to school violence that has occurred in the region.

(3) The competent superintendent of education shall designate a counseling, treatment or education institution that shall take charge of counseling, treatment or education under Article 16 (1) 1 through 3 or Article 17 (1) 5, in consideration of the opinions of the competent regional committee. [<Amended by Act No. 11223, Jan. 26, 2012>](#)

(4) When the competent superintendent of education designates a counseling, treatment or education institution provided for in paragraph (3), it shall post the name, location and services of such institution on the website, or shall endeavor to inform parents of students thereof by other various means. [<Newly Inserted by Act No. 11223, Jan. 26, 2012>](#)

Article 10-2 (Establishment and Operation of Regional Coordination Committees for Countermeasures against School Violence)⁽¹⁾ Each Si/Gun/Gu shall establish a regional coordination committee for

countermeasures against school violence (hereinafter referred to as "regional coordination committee") to formulate measures to prevent school violence and coordinate implementation plans of each institution and plans for cooperation and assistance for each institution.

(2) Each regional coordination committee shall be comprised of approximately 20 members, including one chairperson.

(3) Other matters necessary for the organization and operation of regional coordination committees shall be prescribed by Presidential Decree.

[This Article Newly Inserted by Act No. 11388, Mar. 21, 2012]

Article 11 (Duties of Superintendents of Education)(1) The superintendent of education shall establish and operate an exclusive unit for the prevention of and countermeasures against school violence in the City/Do office of education.

(2) The superintendent of education may, if a case of school violence occurs in his/her jurisdiction, require the head of the school at issue or the head of the school involved to report to him/her on the course and results of said school violence.

(3) The superintendent of education shall, if a case of school violence in his/her jurisdiction is connected with a case of school violence in any region outside of his/her jurisdiction, consult with the superintendent of education having jurisdiction over the region to take appropriate countermeasures.

(4) The superintendent of education shall require the head of each school to establish and implement an action plan for the prevention of and countermeasures against school violence.

(5) No superintendent of education shall use the frequency of school violence in a school, which has been dealt with by the competent autonomous committee under Article 12, as negative data in the evaluation of the performance of duties of the head of the school.

(6) The superintendent of education shall take measures necessary for the transfer of a student to another school on the ground referred to in Article 17 (1) 8, if such transfer is required, and shall formulate measures appropriate for the healthy growth of a student, such as re-admission to another school, where the student is expelled from school under Article 17 (1) 9. [<Amended by Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012>](#)

(7) The superintendent of education shall report matters regarding the current status of violence which has occurred at schools within his/her jurisdiction and measures taken to deal with such violence to the Countermeasure Committee and the competent regional committee, and shall publish such matters. The foregoing shall also apply where a school within his/her jurisdiction is involved in any case of violence which has occurred at a school outside of his/her jurisdiction. [<Amended by Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012>](#)

(8) The superintendent of education shall conduct a fact-finding survey at least twice a year to ascertain the current status of school violence and to develop efficient measures to prevent school violence and shall publish the results thereof. [<Newly Inserted by Act No. 11388, Mar. 21, 2012; Act No. 13576, Dec. 22, 2015>](#)

(9) The superintendent of education may establish and operate a specialized institution to conduct investigations, provide counseling services and operate treatment programs in relation to school violence and other issues. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

(10) When the head of a school at which school violence has occurred, or a teaching staff member of such school, intentionally reduces or hides the course or results of such violence in the course of reporting it, the competent superintendent of education shall require the relevant disciplinary committee provided for in Article 50 of the Educational Officials Act and Article 62 of the Private School Act to pass a resolution on disciplinary measures against such head or such teaching staff. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

(11) The superintendent of education may reward schools or teaching staff for their efforts to prevent school violence or develop countermeasures against school violence, or may provide additional points when evaluating performance record of the relevant teaching staff members. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

(12) Matters necessary for the organization of an exclusive unit to be established under paragraph (1), for performing fact-finding surveys under paragraph (8), and for establishing a specialized institution provided for in paragraph (9) shall be prescribed by Presidential Decree. [<Amended by Act No. 11388, Mar. 21, 2012>](#)

Article 11 (Duties of Superintendents of Education)(1) The superintendent of education shall establish and operate an exclusive unit for the prevention of and countermeasures against school violence in the City/Do office of education.

(2) The superintendent of education may, if a case of school violence occurs in his/her jurisdiction, require the head of the school at issue or the head of the school involved to report to him/her on the course and results of said school violence.

(3) The superintendent of education shall, if a case of school violence in his/her jurisdiction is connected with a case of school violence in any region outside of his/her jurisdiction, consult with the superintendent of education having jurisdiction over the region to take appropriate countermeasures.

(4) The superintendent of education shall require the head of each school to formulate and implement an action plan for the prevention of and countermeasures against school violence.

(5) The superintendent of education shall not use the frequency of school violence in a school, which has been dealt with by a competent deliberative committee under Article 12, as negative data in the evaluation of the performance of duties of the head of the school. [<Amended by Act No. 16441, Aug. 20, 2019>](#)

(6) The superintendent of education shall take measures necessary for the transfer of a student to another school on the ground referred to in Article 17 (1) 8, if such transfer is required, and shall formulate measures appropriate for the healthy growth of a student, such as re-admission to another school, where the student is expelled from school under Article 17 (1) 9. [<Amended by Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012>](#)

(7) The superintendent of education shall report matters regarding the current status of violence which has occurred at schools within his/her jurisdiction and measures taken to deal with such violence to the Countermeasure Committee and the competent regional committee, and shall publish such matters. The foregoing shall also apply where a school within his/her jurisdiction is involved in any case of violence which has occurred at a school outside of his/her jurisdiction. [<Amended by Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012>](#)

(8) The superintendent of education shall conduct a fact-finding survey at least twice a year to ascertain the current status of school violence and to formulate efficient measures to prevent school violence and shall publish the results thereof. [<Newly Inserted by Act No. 11388, Mar. 21, 2012; Act No. 13576, Dec. 22, 2015>](#)

(9) The superintendent of education may establish and operate a specialized institution to conduct investigations, provide counseling services and operate treatment programs in relation to school violence and other issues. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

(10) When the head of a school at which school violence has occurred, or a teaching staff member of such school, intentionally reduces or hides the course or results of such violence in the course of reporting it, the competent superintendent of education shall require the relevant disciplinary committee provided for in Article 50 of the Educational Officials Act and Article 62 of the Private School Act to pass a resolution on disciplinary measures against such head or such teaching staff. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

(11) The superintendent of education may reward schools or teaching staff for their efforts to prevent school violence or formulate countermeasures against school violence, or may provide additional points when

evaluating performance record of the relevant teaching staff members. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

(12) Matters necessary for the organization of an exclusive unit to be established under paragraph (1), for conducting fact-finding surveys under paragraph (8), and for establishing a specialized institution provided for in paragraph (9) shall be prescribed by Presidential Decree. [<Amended by Act No. 11388, Mar. 21, 2012>](#)

[Enforcement Date: Mar. 1, 2020] Article 11

Article 11-2 (Investigation, Counseling, etc. on School Violence)(1) The superintendent of education may engage in the following investigation, counseling or other affairs to prevent school violence and to take follow-up measures:

1. Providing counseling services to victim students of school violence and investigating aggressor students;
2. Investigating parents of aggressor students, if necessary;
3. Guiding the implementation of plans for the prevention of and countermeasures against school violence;
4. Cracking down on school gangs within his/her jurisdiction;
5. Visiting and inspecting private offices or private places of business to prevent school violence;
6. Conducting other necessary affairs in relation to school violence, etc.

(2) The superintendent of education may entrust an institution or organization designated by Presidential Decree with investigations, counseling or other affairs specified in paragraph (1).

(3) If necessary to engage in investigations, counseling or other affairs in accordance with paragraph (1), the superintendent of education and the head of an institution or organization entrusted under paragraph (2) may request the heads of the relevant institutions to provide cooperation thereto.

(4) Any person who engages in an investigation, counseling or other affairs specified in paragraph (1) shall carry with him/her a certificate indicating his/her authority, and produce it to interested parties.

(5) The outcomes of an investigation conducted under paragraph (1) 1 and 4 shall be notified to the head of the relevant school and the relevant guardian.

[This Article Newly Inserted by Act No. 11388, Mar. 21, 2012]

Article 11-3 (Cooperation, etc. with Relevant Institutions)(1) The Minister of Education, the superintendent of education, the head of each district office of education, or the head of each school may request the Commissioner General of the Korean National Police Agency, the commissioner of the competent district police agency, the chief of the competent police station, or the head of the relevant institution to provide personal information or other data in relation to school violence. [<Amended by Act No. 11690, Mar. 23, 2013>](#)

(2) Upon receipt of a request under paragraph (1), the Commissioner General of the Korean National Police Agency, the commissioner of the competent district police agency, the chief of the competent police station, or the head of the relevant institution shall comply therewith, except in extenuating circumstances.

(3) Matters necessary for cooperation with relevant institutions and procedures therefor under paragraphs (1) and (2) and other matters shall be prescribed by Presidential Decree.

[This Article Newly Inserted by Act No. 11388, Mar. 21, 2012]

Article 12 (Establishment and Functions of Autonomous Committees for Countermeasures against School Violence)(1) Each school shall establish an autonomous committee for countermeasures against school violence (hereinafter referred to as "autonomous committee") to deliberate on matters related to the prevention of and countermeasures against school violence: Provided, That at least two schools may establish a joint autonomous committee after filing a report with the relevant superintendent of education on any ground prescribed by Presidential Decree. [<Amended by Act No. 11223, Jan. 26, 2012>](#)

(2) Each autonomous committee shall deliberate on the following matters for the prevention of and countermeasures against school violence: [<Amended by Act No. 11223, Jan. 26, 2012>](#)

1. Establishing a school system to prevent school violence and to develop countermeasures against school violence;
2. Protecting victim students;
3. Guiding and punishing aggressor students;
4. Mediating disputes between victim students and aggressor students;
5. Other matters prescribed by Presidential Decree.

(3) Each autonomous committee may request the head of the relevant school and the chief of the competent police station to provide data concerning school violence that has occurred in the relevant area. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

(4) Matters necessary for the establishment and operation of each autonomous committee and other matters shall be prescribed by Presidential Decree, taking into consideration the size of each region and each school.

Article 12 (Establishment and Functions of Deliberative Committees to Deal with School Violence)⁽¹⁾

In order to deliberate on matters regarding how to prevent and deal with school violence, a deliberative committee to deal with school violence (hereinafter referred to as "deliberative committee") shall be established in a district office of education (where a district office of education is nonexistent, referring to an institution prescribed by municipal ordinance of the relevant City/Do; hereinafter the same shall apply) under Article 34 of the Local Education Autonomy Act or Article 80 of the Special Act on the Establishment of Jeju Special Self-Governing Province and the Development of Free International City: Provided, That where, in organizing a deliberative committee, reasons prescribed by Presidential Decree exist, at least two district offices of education may establish a joint deliberative committee after filing a report with the relevant superintendent of education.

[<Amended by Act No. 11223, Jan. 26, 2012; Act No. 16441, Aug. 20, 2019>](#)

(2) A deliberative committee shall deliberate on the following matters regarding how to prevent and deal with school violence: [<Amended by Act No. 11223, Jan. 26, 2012; Act No. 16441, Aug. 20, 2019>](#)

1. Prevention of and countermeasures against school violence;
2. Protection of victim students;
3. Education and guidance of aggressor students and disciplinary actions thereon;
4. Mediation of disputes between victim students and aggressor students;
5. Other matters prescribed by Presidential Decree.

(3) A deliberative committee may investigate school violence that has occurred in the relevant district and request the head of the relevant school and the chief of the competent police station to provide data. [<Newly Inserted by Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

(4) Matters necessary for the establishment, functions, etc. of a deliberative committee shall be prescribed by Presidential Decree, taking into consideration of the size, etc. of the relevant district and the relevant district office of education. [<Amended by Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

[Enforcement Date: Mar. 1, 2020] Article 12

Article 13 (Organization of Autonomous Committees)⁽¹⁾ An autonomous committee shall be comprised of at least five to up to ten members, including one chairperson; a majority of the total members shall be commissioned from among representatives of parents directly elected at a parents conference, as prescribed by Presidential Decree: Provided, That if it is impracticable to elect representatives of parents at a parents conference due to any extenuating circumstance, representatives of parents may be elected at a conference consisting of representatives of every class. [<Amended by Act No. 10642, May 19, 2011>](#)

(2) Meetings of an autonomous committee shall be held at least once a quarter, and the chairperson of an autonomous committee shall call a meeting under any of the following circumstances: [<Newly Inserted by Act No. 10642, May 19, 2011; Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012>](#)

1. Where requested by at least 1/4 of the members registered with the autonomous committee;
 2. Where requested by the head of a school;
 3. Where requested by a victim student or his/her parents;
 4. Where the occurrence of school violence is notified or reported to the committee;
 5. Where the fact that an aggressor student has threatened or retaliated against a victim student is notified or reported to the committee;
 6. Other cases deemed necessary by the chairperson.
- (3) Each autonomous committee shall prepare and keep meeting minutes stating the date, place, members present, discussion and matters for resolution of the meeting. [<Newly Inserted by Act No. 10642, May 19, 2011>](#)
- (4) Other matters necessary for the organization and operation of autonomous committees shall be prescribed by Presidential Decree. [<Amended by Act No. 10642, May 19, 2011>](#)

Article 13 (Composition and Operation of Deliberative Committees)(1) A deliberative committee shall consist of not less than 10 but not more than 50 members; the parents of students attending schools (including high schools) in a district under the jurisdiction of a district office of education shall be commissioned to become members of a deliberative committee, who account for at least 1/3 of the total number of members of the deliberative committee. [<Amended by Act No. 10642, May 19, 2011; Act No. 16441, Aug. 20, 2019>](#)

(2) The chairperson of a deliberative committee shall convene a meeting in any of the following cases: [<Newly Inserted by Act No. 10642, May 19, 2011; Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

1. Where at least 1/4 of the members registered at the deliberative committee make a request;
2. Where the head of a school makes a request;
3. Where a victim student or his/her guardian makes a request;
4. Where the occurrence of school violence is notified or reported to the committee;
5. Where the fact that an aggressor student has threatened or retaliated against a victim student is notified or reported to the committee;
6. Other cases deemed necessary by the chairperson.

(3) A deliberative committee shall prepare and keep meeting minutes stating the date, time, venue, members present, matters discussed and decisions made at the meeting, etc. [<Newly Inserted by Act No. 10642, May 19, 2011; Act No. 16441, Aug. 20, 2019>](#)

(4) Other matters necessary for the composition and operation of deliberative committees shall be prescribed by Presidential Decree. [<Amended by Act No. 10642, May 19, 2011; Act No. 16441, Aug. 20, 2019>](#)

[Enforcement Date: Mar. 1, 2020] Article 13

Article 13-2 (Self-Resolution by Heads of Schools)(1) Notwithstanding Article 13 (2) 4 and 5, in the case of minor school violence falling under all of the following subparagraphs in which a victim student and his/her guardian do not want a meeting of the deliberative committee to be held, the head of the school may resolve the school violence case autonomously. In such cases, the head of the school shall, without delay, report the matter to the deliberative committee:

1. Where a medical report certifying that at least two weeks are needed for physical or mental treatment has not been issued;
2. Where there is no property damage or damage has been immediately recovered;
3. Where the school violence is not persistent;
4. Where it is not a retaliatory action against a report, statement, provision of data, etc. on the previous school violence.

(2) Where the head of a school intends to resolve a case pursuant to paragraph (1), he/she shall go through all of the following procedures:

1. Written confirmation of the opinion of a victim student and his/her guardian to hold a meeting of a deliberative committee;
2. Written confirmation of an exclusive unit under Article 14 (3) and deliberation thereby on whether the school violence is a serious or slight one.

(3) Other matters necessary for resolving school violence cases by the heads of schools autonomously shall be prescribed by Presidential Decree.

[This Article Newly Inserted by Act No. 16441, Aug. 20, 2019]

Article 14 (Placement of Professional School Counselors and Organization of Exclusive Units)(1) The

head of each school shall install a counseling office, as prescribed by Presidential Decree, and shall assign a professional school counselor pursuant to Article 19-2 of the Elementary and Secondary Education Act.

(2) Upon receipt of a request from the head of a school or an autonomous committee, a professional school counselor shall report the results of counseling with victims and aggressors involved in a case of school violence.

(3) The head of each school shall organize a unit exclusively responsible for school violence issues (hereinafter referred to as "exclusive unit") with a vice principal, a professional school counselor, a health teacher, a responsible teacher (referring to a teacher who takes charge of school violence issues), and others, and shall require the exclusive unit or the teaching staff to ascertain the fact of violence and damage without delay after he/she has become aware of the occurrence of school violence. [<Amended by Act No. 11388, Mar. 21, 2012>](#)

(4) An exclusive unit shall prepare and conduct fact-finding surveys on school violence (hereinafter referred to as "fact-finding survey") and programs for the prevention of school violence, and shall report the findings from surveys or other activities conducted in connection with school violence upon receipt of a request from the head of the school or the autonomous committee. [<Amended by Act No. 11388, Mar. 21, 2012>](#)

(5) A victim student or the guardian of a victim student may request the exclusive unit to conduct a fact-finding survey to ascertain the fact of damage. [<Newly Inserted by Act No. 9642, May 8, 2009; Act No. 11388, Mar. 21, 2012>](#)

(6) The State and each local government shall grant subsidies for the budget necessary for fact-finding surveys, related administrative agencies shall cooperate in fact-finding surveys, and the head of each school may provide administrative and financial support to the relevant exclusive unit. [<Amended by Act No. 11388, Mar. 21, 2012>](#)

(7) When necessary, an exclusive unit may entrust a specialized institution with an investigation of sexual violence or other special school violence to ensure expertise in such investigation. In such cases, the exclusive unit shall entrust such investigation in the name of the head of the relevant school, following deliberation thereon by the chairperson of the relevant autonomous committee. [<Newly Inserted by Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012>](#)

(8) Matters necessary for the operation of an exclusive unit and other matters shall be prescribed by Presidential Decree. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

Article 14 (Placement of Professional School Counselors and Organization of Exclusive Units)(1) The

head of each school shall install a counseling office, as prescribed by Presidential Decree, and shall assign a professional school counselor pursuant to Article 19-2 of the Elementary and Secondary Education Act.

(2) Where the head of a school or a deliberative committee makes a request, a professional school counselor shall report the results of counseling with victim students and aggressor students involved in a school violence case. [<Amended by Act No. 16441, Aug. 20, 2019>](#)

(3) The head of a school shall organize a unit exclusively responsible for school violence cases (hereinafter referred to as "exclusive unit") with a vice principal, a professional school counselor, a health teacher, a responsible teacher (referring to a teacher who takes charge of school violence cases), parents, etc. In such cases, the number of parents shall account for at least 1/3 of the number of members of the exclusive unit.

<Amended by Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>

(4) Where the head of a school recognizes a school violence case, he/she shall, without delay, have an exclusive unit or affiliated teachers check whether there is any wrongdoing or harm, and have the exclusive unit deliberate on whether to refer the case to self-resolution by the head of the school pursuant to Article 13-2.

<Newly Inserted by Act No. 16441, Aug. 20, 2019>

(5) An exclusive unit shall prepare and conduct fact-finding surveys on school violence (hereinafter referred to as "fact-finding survey") and programs for the prevention of school violence, and shall report the findings from surveys or other activities conducted in connection with school violence upon receipt of a request from the head of the school or the deliberative committee. <Amended by Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>

(6) A victim student or his/her guardian may request an exclusive unit to conduct a fact-finding survey to ascertain the fact of damage. <Newly Inserted by Act No. 9642, May 8, 2009; Act No. 11388, Mar. 21, 2012>

(7) The State and local governments shall grant subsidies from the budget necessary for fact-finding surveys, and related administrative agencies shall cooperate in fact-finding surveys, and the head of a school may provide administrative and financial support to the relevant exclusive unit. <Amended by Act No. 11388, Mar. 21, 2012>

(8) An exclusive unit may entrust a specialized institution with a fact-finding survey of sexual violence cases or other special school violence cases, if necessary to ensure expertise in such fact-finding survey. In such cases, the exclusive unit shall entrust such fact-finding survey in the name of the head of the relevant school after deliberation thereon by the chairperson of the relevant deliberative committee. <Newly Inserted by Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>

(9) Other matters necessary for the operation, etc. of exclusive units shall be prescribed by Presidential Decree. <Newly Inserted by Act No. 11388, Mar. 21, 2012>

[Enforcement Date: Mar. 1, 2020] Article 14

Article 15 (Education, etc. for Prevention of School Violence)(1) The head of each school shall provide educational programs (including the following: what school violence is, how widespread it is, and how to deal with it) to students at least once a semester for the physical and mental protection of students and the prevention of school violence. <Amended by Act No. 11223, Jan. 26, 2012>

(2) The head of each school shall provide educational programs to school staff and parents of students at least once a semester for the prevention of and countermeasures against school violence. <Amended by Act No. 11388, Mar. 21, 2012>

(3) The head of each school may consult with the exclusive unit on the format and schedules of educational programs for the prevention of school violence under paragraph (1) and entrust a specialized organization or experts with such programs.

(4) The head of each regional office of education shall post on the Internet homepage the format and schedules of educational programs for the prevention of school violence provided for in paragraphs (1) through (3) in order to enable parents of students to readily access such information, and shall endeavor to inform parents of students thereof by other various means. <Amended by Act No. 11223, Jan. 26, 2012>

(5) Other matters necessary for the provision of educational programs for the prevention of school violence shall be prescribed by Presidential Decree.

Article 16 (Protection of Victim Students)(1) If an autonomous committee deems it necessary for the protection of a victim student, it may request the head of the relevant school to take any of the following measures (or several concurrent measures) for the victim student: Provided, That the head of a school may take any measure under subparagraph 1, 2, or 6 before the autonomous committee requests such measure, if he/she deems that an urgent measure is required for the protection of a victim student or receives a request for urgent protection from a victim student: [<Amended by Act No. 11388, Mar. 21, 2012; Act No. 14762, Apr. 18, 2017>](#)

1. Psychological counseling or advice by experts from within and outside school;
2. Temporary protection;
3. Treatment and recuperation for treatment;
4. Change of class;
5. Deleted; [<by Act No. 11388, Mar. 21, 2012>](#)
6. Other measures necessary for the protection of a victim student.

(2) An autonomous committee shall provide a victim student and his/her guardian with an opportunity to state opinions and shall follow due process prior to filing a request to take measures under paragraph (1). [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

(3) Upon receipt of a request under paragraph (1), the head of a school shall take the requested measures, subject to the consent of the guardian of the victim student within seven days, and shall report it to the autonomous committee. [<Amended by Act No. 11388, Mar. 21, 2012>](#)

(4) When necessary for a student requiring a protective measure under paragraph (1), the head of a school may include in the number of days of his/her attendance the number of days of the student's absence necessary for such measure.

(5) The head of a school shall endeavor to keep a student from being prejudiced due to a measure taken under paragraph (3) in evaluating academic achievements. [<Amended by Act No. 11388, Mar. 21, 2012>](#)

(6) Expenses incurred by a specialized institution or expert in providing counseling or other services to a victim student in the course of taking measures under paragraph (1) 1 through 3 shall be borne by the guardian of an aggressor student: Provided, That if the head of the school or the guardian of the victim student wishes it to expedite the treatment of the victim student, the competent school safety mutual aid association under Article 15 of the Act on the Prevention of and Compensation for Accidents at School or the competent City/Do office of education may reimburse such expenses, and exercise its right to reimbursement of indemnity therefor:

[<Amended by Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012>](#)

1. and 2. Deleted. [<by Act No. 11388, Mar. 21, 2012>](#)

(7) When necessary, the head of a school or the guardian of a victim student may directly require the competent school safety mutual aid association to make reimbursement from mutual aid funds referred to in Article 34 of the Act on the Prevention of and Compensation for Accidents at School. [<Newly Inserted by Act No. 11223, Jan. 26, 2012>](#)

(8) Matters necessary for the protection of victim students, the scope of expenses provided for in paragraph (6), the scope of indemnity therefor, and payment procedures thereof shall be prescribed by Presidential Decree. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

Article 16 (Protection of Victim Students)(1) If deemed necessary for the protection of a victim student, a deliberative committee may request the head of a district office of education (where the head of a district office of education is nonexistent, referring to the head of an institution prescribed by municipal ordinance of the relevant City/Do pursuant to Article 12 (1); hereinafter the same shall apply) to take any of the following measures (including where the head of the relevant district office of education is requested to take multiple measures simultaneously) for the protection of the victim student: Provided, That where the head of a school

deems that an urgent measure is required for the protection of the victim student or the victim student makes a request for urgent protection, he/she may take measures under subparagraph 1, 2, or 6. In such cases, he/she shall immediately report thereon to the deliberative committee: [<Amended by Act No. 11388, Mar. 21, 2012; Act No. 14762, Apr. 18, 2017; Act No. 16441, Aug. 20, 2019>](#)

1. Psychological counseling or advice by experts from within and outside school;
2. Temporary protection;
3. Treatment and recuperation for treatment;
4. Change of class;
5. Deleted; [<by Act No. 11388, Mar. 21, 2012>](#)
6. Other measures necessary for the protection of a victim student.

(2) A deliberative committee shall provide a victim student and his/her guardian with an opportunity to state opinions and shall follow due process prior to filing a request to take measures under paragraph (1). [<Newly Inserted by Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

(3) Upon receipt of a request under paragraph (1), the head of a district office of education shall take measures as requested, within seven days, with consent from the guardian of the victim student. [<Amended by Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

(4) If deemed necessary for a student requiring a protective measure under paragraph (1), the head of a school may include in the number of days of his/her attendance the number of days of the student's absence necessary for such measure.

(5) The head of a school shall endeavor to keep a student from being prejudiced due to a measure taken under paragraph (3) in evaluating academic achievements, etc. [<Amended by Act No. 11388, Mar. 21, 2012>](#)

(6) Expenses incurred by a specialized institution or expert in providing counseling or other services to a victim student in the course of taking measures under paragraph (1) 1 through 3 shall be borne by the guardian of an aggressor student: Provided, That if the head of the school or the guardian of the victim student wishes it to expedite the treatment of the victim student, the competent school safety mutual aid association under Article 15 of the Act on the Prevention of and Compensation for Accidents at School or the competent City/Do office of education may reimburse such expenses, and exercise its right to reimbursement of indemnity therefor:

[<Amended by Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012>](#)

1. and 2. Deleted. [<by Act No. 11388, Mar. 21, 2012>](#)

(7) When necessary, the head of a school or the guardian of a victim student may directly require the competent school safety mutual aid association to make reimbursement from mutual aid funds referred to in Article 34 of the Act on the Prevention of and Compensation for Accidents at School. [<Newly Inserted by Act No. 11223, Jan. 26, 2012>](#)

(8) Matters necessary for the protection of victim students, the scope of expenses provided for in paragraph (6), the scope of indemnity therefor, and payment procedures thereof shall be prescribed by Presidential Decree.

[<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

[Enforcement Date: Mar. 1, 2020] Article 16

Article 16-2 (Protection of Disabled Students)(1) No one shall commit school violence against a disabled student on the ground of his/her disability.

(2) An autonomous committee may request the head of a school to take measures for counseling by a counselor specializing in disabled persons or recuperation in an institution specializing in treating disabled persons to protect a disabled student injured by school violence.

(3) Upon receipt of a request under paragraph (2), the head of a school shall take measures as requested.

Article 16 (6) shall apply mutatis mutandis to such cases. [<Amended by Act No. 11388, Mar. 21, 2012>](#)

[This Article Newly Inserted by Act No. 9642, May 8, 2009]

Article 16-2 (Protection of Disabled Students)(1) No one shall commit school violence against a disabled student on the ground of his/her disability.

(2) A deliberative committee may request the head of a school to take measures of counseling by a counselor specializing in disabled persons or recuperation in an institution specializing in treating disabled persons to protect a disabled student injured by school violence. [<Amended by Act No. 16441, Aug. 20, 2019>](#)

(3) Upon receipt of a request under paragraph (2), the head of a school shall take measures as requested.

Article 16 (6) shall apply mutatis mutandis to such cases. [<Amended by Act No. 11388, Mar. 21, 2012>](#)

[This Article Newly Inserted by Act No. 9642, May 8, 2009]

[Enforcement Date: Mar. 1, 2020] Article 16-2

Article 17 (Countermeasures against Aggressor Students)(1) An autonomous committee shall request the head of a school to take any of the following measures (or several concurrent measures) against an aggressor student in order to protect a victim student or to enlighten and educate an aggressor student, and standards applicable to each measure shall be prescribed by Presidential Decree: Provided, That the expulsion from school shall not be applicable to an aggressor student enrolled in a compulsory educational course: [<Amended by Act No. 9642, May 8, 2009; Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012>](#)

1. An order to give a written apology to a victim student;
2. Prohibition against making contact with, threatening, or retaliation against a victim student and a student who has reported, or notified, school violence;
3. Service to a school;
4. Service to the society;
5. Completing a special educational course or receiving psychological treatment from an internal or external expert;
6. Suspension of attendance;
7. Change of class;
8. Transfer to another school;
9. Expulsion from a school.

(2) If an autonomous committee requests the head of a school to take measures against an aggressor student in accordance with paragraph (1) on the ground that the aggressor student has threatened or retaliated against the victim student or the student who has reported, or notified, school violence, it may concurrently take several measures under the same paragraph or cumulatively take such measures. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

(3) An aggressor student upon whom a disposition falling under paragraph (1) 2 through 4 and 6 through 8 is imposed shall complete a special educational course and receive psychological treatment in an institution designated by the competent superintendent of education, and the period of such educational course or treatment shall be set by the autonomous committee. [<Amended by Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012>](#)

(4) If the head of a school deems it necessary to take an urgent measure for the guidance for an aggressor student, he/she may first take measures falling under paragraph (1) 1 through 3, 5 and 6, and may concurrently take both measures falling under paragraph (1) 5 and 6 at his/her discretion. In such cases, he/she shall report the measure so taken to the autonomous committee immediately for subsequent approval. [<Amended by Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012>](#)

(5) An autonomous committee shall provide an aggressor student and his/her guardian with an opportunity to make statements and shall follow due process before requesting to take measures falling under paragraph (1) or (2). [<Amended by Act No. 11388, Mar. 21, 2012>](#)

(6) Upon receipt of a request under paragraph (1), the head of a school shall take the measures as requested within 14 days. [<Amended by Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012>](#)

(7) When the head of a school takes measures falling under paragraph (4), he/she shall notify the aggressor student and his/her guardian and shall, if the aggressor student refuses or evades such measures, punish the student pursuant to Article 18 of the Elementary and Secondary Education Act. [<Amended by Act No. 11388, Mar. 21, 2012>](#)

(8) Where an aggressor student is absent due to measures falling under paragraph (1) 3 through 5, the head of the school may include the number of days of such absence in the number of days of attendance, if deemed necessary. [<Amended by Act No. 11223, Jan. 26, 2012>](#)

(9) When an aggressor student undergoes a special educational course, an autonomous committee shall require the guardian of the student to undergo the educational course together with the aggressor student. [<Amended by Act No. 11388, Mar. 21, 2012>](#)

(10) No aggressor student who has transferred to another school shall be allowed to be readmitted to the school in which a victim student is enrolled. [<Newly Inserted by Act No. 11223, Jan. 26, 2012>](#)

(11) Notwithstanding paragraph (7), if a student subject to any of the measures falling under paragraph (1) 2 through 9 refuses or evades such measures, an autonomous committee may request the head of the school to take other measures in addition to any such measure, as prescribed by Presidential Decree. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

(12) Matters necessary for the measures taken against aggressor students and readmission under Article 11 (6) shall be prescribed by Presidential Decree. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

Article 17 (Measures on Aggressor Students)(1) A deliberative committee shall request the head of a district office of education to take any of the following measures (including where the head of a district office of education is requested to take multiple measures simultaneously) on an aggressor student in order to protect a victim student or to guide the aggressor student to the right path and teach him/her the right way, and the criteria for applying the measures shall be prescribed by Presidential Decree: Provided, That expulsion from school shall not apply to an aggressor student enrolled in the compulsory education system: [<Amended by Act No. 9642, May 8, 2009; Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

1. An order to give a written apology to a victim student;
2. Prohibition against making contact with, threatening, or retaliation against a victim student and a student who has reported, or notified, school violence;
3. Service to a school;
4. Service to the society;
5. Completing a special educational course or receiving psychological treatment from experts from within and outside school;
6. Suspension of attendance;
7. Change of class;
8. Transfer to another school;
9. Expulsion from school.

(2) If a deliberative committee requests the head of a district office of education to take measures on an aggressor student in accordance with paragraph (1) on the ground that the aggressor student has threatened or retaliated against a victim student or a student who has reported, or notified, school violence, it may take multiple measures under the same paragraph simultaneously or heavier measures. [<Newly Inserted by Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

(3) An aggressor student upon whom an administrative measure falling under paragraph (1) 2 through 4 and 6 through 8 is imposed shall receive special education or psychological treatment in an institution designated by the competent superintendent of education, and the period of such education or treatment shall be set by the deliberative committee. [<Amended by Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

(4) If the head of a school deems that guiding an aggressor student to the right path is urgent, he/she may prioritize taking a measure under paragraph (1) 1 through 3, 5, or 6; and he/she may take measures under paragraph (1) 5 and 6 simultaneously. In such cases, he/she shall immediately report the measures taken to the deliberative committee and obtain retroactive approval. [<Amended by Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

(5) A deliberative committee shall provide an aggressor student and his/her guardian with an opportunity to make statements and shall follow due process before requesting to take measures falling under paragraph (1) or (2). [<Amended by Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

(6) Upon receipt of a request under paragraph (1), the head of a district office of education shall take measures as requested within 14 days. [<Amended by Act No. 11223, Jan. 26, 2012; Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

(7) If the head of a school takes a measure under paragraph (4), he/she shall notify an aggressor student and his/her guardian thereof; if the aggressor student refuses or evades such measure, the head of the school shall take a disciplinary action on the student pursuant to Article 18 of the Elementary and Secondary Education Act. [<Amended by Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

(8) Where an aggressor student is absent due to measures falling under paragraph (1) 3 through 5, the head of the school may include the number of days of such absence in the number of days of attendance, if deemed necessary. [<Amended by Act No. 11223, Jan. 26, 2012>](#)

(9) Where an aggressor student receives special education, the deliberative committee shall have his/her guardian receive the special education together with the aggressor student. [<Amended by Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

(10) No aggressor student who has transferred to another school shall be allowed to be readmitted to the school in which a victim student is enrolled. [<Newly Inserted by Act No. 11223, Jan. 26, 2012>](#)

(11) Notwithstanding paragraph (7), if a student on whom an administrative measure under paragraph (1) 2 through 9 is imposed refuses or evades such measure, the deliberative committee may request the head of the relevant district office of education to take another measure in addition to such measure, as prescribed by Presidential Decree. [<Newly Inserted by Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

(12) Matters necessary for the measures taken against aggressor students and readmission under Article 11 (6) shall be prescribed by Presidential Decree. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

[Enforcement Date: Mar. 1, 2020] Article 17

Article 17-2 (Filing for Appeals)(1) If a victim student or his/her guardian appeals measures that the head of a school has taken pursuant to Articles 16 (1) and 17 (1), he/she shall file an appeal with the competent regional committee within 15 days from the date such measures are taken, or within ten days from the date he/she becomes aware that such measures have been taken. [<Newly Inserted by Act No. 11388, Mar. 21, 2012; Act No. 15044, Nov. 28, 2017>](#)

(2) If a student or his/her guardian appeals measures that the head of a school has taken under Article 17 (1) 8 and 9, he/she shall file an appeal with the competent City/Do mediation committee of disciplinary punishment on students referred to in Article 18-3 of the Elementary and Secondary Education Act within 15 days from the date such measures are imposed on him/her, or within ten days from the date he/she becomes aware of the imposition of such measures. [<Amended by Act No. 15044, Nov. 28, 2017>](#)

(3) Upon receipt of an appeal filed under paragraph (1), the competent regional committee shall review such appeal, make a decision, and shall notify the appellant of such decision within 30 days. <Newly Inserted by Act No. 11388, Mar. 21, 2012>

(4) An appellant dissatisfied with a decision made under paragraph (3) may file an administrative appeal within 60 days from the date he/she is notified of such decision. <Newly Inserted by Act No. 11388, Mar. 21, 2012>

(5) Matters necessary for filing appeals under paragraph (1), proceedings for review and notification of decisions under paragraph (3), and other matters shall be prescribed by Presidential Decree. <Newly Inserted by Act No. 11388, Mar. 21, 2012>

(6) Article 18-2 (2) through (4) of the Elementary and Secondary Education Act shall apply mutatis mutandis to filing appeals, proceedings for review, notification of decisions or other matters under paragraph (2).

<Amended by Act No. 11388, Mar. 21, 2012>

[This Article Newly Inserted by Act No. 11223, Jan. 26, 2012]

Article 17-2 (Administrative Appeals)(1) If a victim student or his/her guardian has an objection to a measure that the head of a district office of education has taken pursuant to Articles 16 (1) and 17 (1), he/she may file an administrative appeal under the Administrative Appeals Act. <Newly Inserted by Act No. 11388, Mar. 21, 2012; Act No. 15044, Nov. 28, 2017; Act No. 16441, Aug. 20, 2019>

(2) If an aggressor student or his/her guardian has an objection to a measure that the head of a district office of education has taken under Article 17 (1), he/she may file an administrative appeal under the Administrative Appeals Act. <Amended by Act No. 15044, Nov. 28, 2017; Act No. 16441, Aug. 20, 2019>

(3) The Administrative Appeals Act shall apply mutatis mutandis to matters necessary for filing an administrative appeal under paragraphs (1) and (2). <Amended by Act No. 16441, Aug. 20, 2019>

(4) through (6) Deleted. <by Act No. 16441, Aug. 20, 2019>

[This Article Newly Inserted by Act No. 11223, Jan. 26, 2012]

[Enforcement Date: Mar. 1, 2020] Article 17-2

Article 18 (Mediation of Disputes)(1) An autonomous committee may mediate a dispute arising in connection with school violence.

(2) The duration of mediation of a dispute under (1) shall not exceed one month.

(3) The mediation of a dispute arising in connection with school violence shall include the following matters:

1. Mediation for settlement of damages between the victim student and the aggressor student or his/her guardian;
2. Other matters the autonomous committee deems necessary.

(4) If an autonomous committee deems it necessary for the mediation of a dispute, it may investigate into the facts relevant to a case of school violence with the cooperation of related authorities.

(5) If an autonomous committee intends to mediate a dispute, it shall notify its intention to the victim student, the aggressor student and his/her guardian.

(6) If schools in which students involved in a dispute are enrolled are within the jurisdiction of one and the same City/Do office of education, the superintendent of education shall mediate the dispute directly, subject to consultation with the heads of the autonomous committee of each school involved in the case. Paragraphs (2) through (5) shall apply mutatis mutandis to such cases.

(7) If schools in which students involved in a dispute are enrolled are not within the jurisdiction of one and the same City/Do office of education, the superintendent of education having authority to supervise the victim student shall mediate the dispute directly, subject to consultation with the superintendent of education having authority to supervise the aggressor student and the heads of the autonomous committee of each school involved in the case. Paragraphs (2) through (5) shall apply mutatis mutandis to such cases.

Article 18 (Mediation of Disputes)(1) A deliberative committee may mediate a dispute arising in connection with school violence. [<Amended by Act No. 16441, Aug. 20, 2019>](#)

(2) The duration of mediation of a dispute under (1) shall not exceed one month.

(3) The mediation of a dispute arising in connection with school violence shall include the following matters:

[<Amended by Act No. 16441, Aug. 20, 2019>](#)

1. Mediation for the settlement of a dispute regarding compensation for damage between a victim student and an aggressor student or between their guardians;

2. Other matters deemed necessary by the deliberative committee.

(4) If a deliberative committee deems necessary for the mediation of a dispute, it may investigate into matters relevant to the school violence case with the cooperation of related authorities. [<Amended by Act No. 16441, Aug. 20, 2019>](#)

(5) If a deliberative committee intends to mediate a dispute, it shall notify its intention to the victim student, the aggressor student, and their guardians. [<Amended by Act No. 16441, Aug. 20, 2019>](#)

(6) If a dispute arises between students belonging to different district offices of education within the jurisdiction of a City/Do office of education, the superintendent of education shall directly mediate the dispute. In such cases, paragraphs (2) through (5) shall apply mutatis mutandis thereto. [<Amended by Act No. 16441, Aug. 20, 2019>](#)

(7) If a dispute arises between students belonging to different City/Do offices of education, the superintendent of education having authority to supervise the victim student shall mediate the dispute directly, after consulting with the superintendent of education having authority to supervise the aggressor student involved in the case. In such cases, paragraphs (2) through (5) shall apply mutatis mutandis thereto. [<Amended by Act No. 16441, Aug. 20, 2019>](#)

[Enforcement Date: Mar. 1, 2020] Article 18

Article 19 (Duties of Heads of Schools)The head of each school shall report to the competent superintendent of education on the fact that a case of school violence has occurred, countermeasures taken pursuant to Articles 16, 16-2, 17, 17-2 and 18, and the results thereof and shall endeavor to prevent the formation of school gangs and to disband such school gangs with the cooperation of related authorities. [<Amended by Act No. 11388, Mar. 21, 2012>](#)

Article 19 (Duties of Heads of Schools)(1) The heads of schools shall cooperate in implementing the measures under Articles 16, 16-2, and 17.

(2) The heads of schools shall not underreport or conceal school violence cases.

(3) The head of a school shall report to the competent superintendent of education on the fact that school violence cases have occurred, on the cases resolved autonomously by himself/herself pursuant to Article 13-2, on the measures taken pursuant to Articles 16, 16-2, 17, and 18, and the results thereof, and endeavor to prevent the formation of school gangs and to disband such school gangs with the cooperation of related authorities.

[This Article Wholly Amended by Act No. 16441, Aug. 20, 2019] [Enforcement Date: Mar. 1, 2020] Article 19

Article 20 (Duties to Report Cases of School Violence)(1) A person who witnesses the scene of a case of school violence or becomes aware of such case shall immediately report it to a school involved or related authorities.

(2) Upon receipt of a report filed under paragraph (1), the authorities shall give notice thereof to the guardians of the aggressor student and the victim student and the heads of the schools in which such students are enrolled. [<Amended by Act No. 9642, May 8, 2009>](#)

(3) Upon receipt of notice given under paragraph (2), the head of a school shall give notice thereof to the autonomous committee without delay. [<Newly Inserted by Act No. 9642, May 8, 2009>](#)

(4) A person who becomes aware of the preparation for or a conspiracy of school violence may inform the head of a school involved or the competent autonomous committee thereof: Provided, That a teaching staff member who becomes aware of such case shall report it to the head of the school involved, and shall notify the parents of students involved thereof. [<Amended by Act No. 11223, Jan. 26, 2012>](#)

(5) No person shall unfairly prejudice a person who has reported school violence in accordance with paragraphs (1) through (4) on any ground related to such notification. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

Article 20 (Duties to Report School Violence Cases)(1) A person who witnesses the scene of a school violence case or becomes aware of such case shall immediately report it to a school involved or related authorities.

(2) Upon receipt of a report filed under paragraph (1), the authorities shall give notice thereof to the guardians of the aggressor student and the victim student and the heads of the schools in which such students are enrolled. [<Amended by Act No. 9642, May 8, 2009>](#)

(3) The head of a school in receipt of a notice under paragraph (2) shall, without delay, notify the deliberative committee thereof. [<Newly Inserted by Act No. 9642, May 8, 2009; Act No. 16441, Aug. 20, 2019>](#)

(4) Anyone who is aware that someone prepares or conspires school violence, etc. may accuse him/her of such deed to the head of a school involved or a competent deliberative committee: Provided, That where a teacher is aware of such deed, he/she shall report it to the head of the school involved, and notify the parents of students involved thereof. [<Amended by Act No. 11223, Jan. 26, 2012; Act No. 16441, Aug. 20, 2019>](#)

(5) No person shall unfairly prejudice a person who has reported school violence in accordance with paragraphs (1) through (4) on any ground related to such reporting. [<Newly Inserted by Act No. 11388, Mar. 21, 2012>](#)

[Enforcement Date: Mar. 1, 2020] Article 20

Article 20-2 (Installation, etc. of Emergency Telephone Lines)(1) The State and each local government shall install emergency telephone lines in order to receive reports on school violence and respond to requests for counseling at anytime.

(2) The State and each local government may entrust an agency or organization designated by Presidential Decree with the installation and operation of emergency telephone lines under paragraph (1). [<Newly Inserted by Act No. 11223, Jan. 26, 2012>](#)

(3) Matters necessary for the installation and operation of emergency telephone lines under paragraph (1) and the entrustment thereof under paragraph (2) shall be prescribed by Presidential Decree. [<Amended by Act No. 11223, Jan. 26, 2012>](#)

[This Article Newly Inserted by Act No. 9642, May 8, 2009]

Article 20-3 (School Violence, etc. via Information and Communications Networks)Matters necessary for physical or mental injuries caused by obscene or violent information sent via an information and communications network provided for in subparagraph 1 of Article 2 shall be prescribed by a separate Act.

[This Article Newly Inserted by Act No. 11388, Mar. 21, 2012]

Article 20-4 (Use, etc. of Information and Communications Networks)(1) If necessary, the State, a local government or the superintendent of education may use information and communications networks to efficiently perform duties concerning the protection of school violence.

(2) If a school or student (including his/her parents) does an act concerning the prevention of school violence via information and communications networks pursuant to paragraph (1), the State, the competent local government or the competent superintendent of education may grant subsidies to help cover all or part of any of the following expenses:

1. Expenses incurred by the school or student (including his/her parents) in purchasing or using telecommunications facilities and equipment;
 2. Telecommunications service fees charged to a school or student (including his/her parents).
- (3) Matters necessary for the use of information and communications networks and other matters shall be prescribed by Presidential Decree.

[This Article Newly Inserted by Act No. 11388, Mar. 21, 2012]

Article 20-5 (Assignment, etc. of School Guards)(1) The State, a local government, or the head of a school may assign school guards in each school to protect school violence.

(2) None of the following persons shall become a school guard: [<Newly Inserted by Act No. 11948, Jul. 30, 2013>](#)

1. Any person who falls under any subparagraph of Article 33 of the State Public Officials Act;
2. Any person who has been sentenced to a fine imposed by a court for committing a sex crime against children and juveniles under the Act on the Protection of Children and Juveniles against Sexual Abuse or a sexual violence crime under the Act on Special Cases concerning the Punishment, etc. of Sexual Crimes and for whom ten years have not passed since the sentence was made definite; or who has been punished by imprisonment without labor or heavier punishment, or medical treatment and custody for committing such crime and for whom ten years have not passed from the date on which the punishment was completed or suspended, or the date on which an exemption from the punishment was made definite;
3. An owner or employee of a business establishment which is off-limits to juveniles or prohibited to employ juveniles under subparagraph 5 (a) (iii) and (vii) through (ix) of Article 2 of the Juvenile Protection Act.

(3) The State, a local government, or the head of a school may entrust affairs concerning assignment and use of school guards under paragraph (1) to a related specialized institution or organization.

(4) A specialized institution or organization entrusted with affairs concerning assignment and use of school guards pursuant to paragraph (3) shall fully consult about conducting such affairs with the head of a school.

[<Amended by Act No. 11948, Jul. 30, 2013>](#)

(5) The State, a local government, or the head of a school may inquire of the Commissioner General of the Korean National Police Agency about criminal records of a person it/he/she intends to assign as a school guard with consent from such person. [<Newly Inserted by Act No. 11948, Jul. 30, 2013>](#)

(6) A specialized institution or organization entrusted with affairs concerning assignment and use of school guards pursuant to paragraph (3) may request the State, a local government, or the head of a school that has entrusted the relevant affairs to inquire about criminal records of a person it intends to assign as a school guard.

[<Newly Inserted by Act No. 11948, Jul. 30, 2013>](#)

(7) Any person who intends to become a school guard shall submit a letter of confirmation that he/she does not fall under any subparagraph of paragraph (2) to the State, a local government, or the head of a school. [<Newly Inserted by Act No. 11948, Jul. 30, 2013>](#)

[This Article Newly Inserted by Act No. 11388, Mar. 21, 2012]

Article 20-6 (School Police Officer)(1) The State may assign police officers in charge of affairs related to school violence to prevent or eradicate it.

(2) Matters necessary for managing school police officers under paragraph (1) shall be prescribed by Presidential Decree.

[This Article Newly Inserted by Act No. 15044, Nov. 28, 2017]

Article 20-7 (Integrated Control of CCTV Systems)(1) The State or a local government may integrate and control CCTV systems (referring to CCTV systems as defined in subparagraph 7 of Article 2 of the Personal Information Protection Act; hereafter the same shall apply in this Article) installed in or outside of school

premises in consultation with the competent superintendent of education, in order to efficiently execute affairs concerning the prevention of school violence. In such cases, the State and each local government shall process personal information to the minimum extent necessary for the integrated control of CCTV systems, and shall not use it for any purpose other than the prescribed purpose.

(2) The State or a local government that intends to control CCTV systems in an integrated manner pursuant to paragraph (1) shall seek opinions from relevant experts and interested parties by holding public hearings or seminars or following other procedures prescribed by Presidential Decree.

(3) If CCTV systems installed in or outside of a school premise are controlled in an integrated manner pursuant to paragraph (1), the operator of such CCTV systems shall take measures under Article 25 (4) of the Personal Information Protection Act to notify the party to CCTV data as to the integrated control of such CCTV systems.

(4) Except as otherwise expressly prescribed by this Act, the Personal Information Protection Act shall apply to matters concerning integrated control.

(5) Matters necessary for the integrated control of CCTV systems and other matters shall be prescribed by Presidential Decree.

[This Article Newly Inserted by Act No. 11388, Mar. 21, 2012]

Article 21 (Prohibition, etc. against Divulgence of Confidential Information)(1) No person who executes or has executed affairs related to the prevention of and countermeasures against school violence shall divulge confidential information concerning aggressor students, victim students and reporting or notifying persons under Article 20 that he/she has become aware of in the course of performing duties or handling data. [<Amended by Act No. 11223, Jan. 26, 2012>](#)

(2) The specific scope of confidential information referred to in paragraph (1) shall be prescribed by Presidential Decree.

(3) No meetings of an autonomous committee under Articles 16, 16-2, 17, 17-2 and 18 shall be open to the public: Provided, That when a victim student, an aggressor student, or his/her parents request to peruse or copy the proceedings, or make the proceedings open to the public, information shall be made open to the public except private information, including the names, registration numbers, and addresses of the students and their family, and the names of the committee members. [<Amended by Act No. 10642, May 19, 2011; Act No. 11388, Mar. 21, 2012>](#)

Article 21 (Prohibition against Divulgence of Confidential Information)(1) No person who performs or performed affairs related to the prevention of and countermeasures against school violence under this Act shall divulge confidential information he/she has become aware of in the course of performing any of his/her duties or data related to aggressor students, victim students, and reporting or notifying persons under Article 20. [<Amended by Act No. 11223, Jan. 26, 2012>](#)

(2) The specific scope of confidential information referred to in paragraph (1) shall be prescribed by Presidential Decree.

(3) The meetings of a deliberative committee under Articles 16, 16-2, 17, 17-2, and 18 shall not be open to the public: Provided, That where a victim student, aggressor student, or their guardians request that the meeting minutes be open to the public, such as perusal, duplication, etc. of the meeting minutes, the meeting minutes shall be made public except for personal information, such as the names, resident registration numbers, and addresses of the students and their family members, and the names of the committee members, etc.

[<Amended by Act No. 10642, May 19, 2011; Act No. 11388, Mar. 21, 2012; Act No. 16441, Aug. 20, 2019>](#)

[Enforcement Date: Mar. 1, 2020] Article 21

Article 21-2 (Exceptions to Local Education Autonomy Act)Notwithstanding Article 35 of the Local Education Autonomy Act, the head of a district office of education may perform duties concerning the protection of victim

students of school violence in high schools, guidance and education of aggressor students, mediation of disputes between victim students and aggressor students, etc. under this Act after being commissioned therewith.

[This Article Newly Inserted by Act No. 16441, Aug. 20, 2019] [Enforcement Date: Mar. 1, 2020] Article 21-2

Article 22 (Penalty Provisions)A person who violates Article 21 (1) shall be punished by imprisonment with labor for up to one year or by a fine not exceeding ten million won.

[This Article Wholly Amended by Act No. 15044, Nov. 28, 2017]

Article 23 (Administrative Fines)(1) A guardian who fails to take measures imposed by an autonomous committee to attend an educational course pursuant to Article 17 (9) shall be punished by an administrative fine not exceeding three million won.

(2) An administrative fine under paragraph (1) shall be levied and collected by a superintendent of education as prescribed by Presidential Decree.

[This Article Newly Inserted by Act No. 15044, Nov. 28, 2017]

Article 23 (Administrative Fines)(1) A guardian who fails to comply with a measure imposed by a deliberative committee that he/she receive education pursuant to Article 17 (9) shall be subject to an administrative fine not exceeding three million won. [<Amended by Act No. 16441, Aug. 20, 2019>](#)

(2) Administrative fines under paragraph (1) shall be imposed and collected by the superintendent of education, as prescribed by Presidential Decree.

[This Article Newly Inserted by Act No. 15044, Nov. 28, 2017]

[Enforcement Date: Mar. 1, 2020] Article 23

▣ **ADDENDUM <Act No. 9642, May 8, 2009>**

This Act shall enter into force three months after the date of its promulgation.

⊕ **ADDENDA <Act No. 9932, Jan. 18, 2010>**

Article 1 (Enforcement Date)

▣ **ADDENDUM <Act No. 10642, May 19, 2011>**

This Act shall enter into force six months after the date of its promulgation.

⊕ **ADDENDA <Act No. 11223, Jan. 26, 2012>**

Article 1 (Enforcement Date)

⊕ **ADDENDA <Act No. 11388, Mar. 21, 2012>**

Article 1 (Enforcement Date)

⊕ **ADDENDA <Act No. 11690, Mar. 23, 2013>**

Article 1 (Enforcement Date)

⊕ **ADDENDA <Act No. 11948, Jul. 30, 2013>**

Article 1 (Enforcement Date)

⊕ **ADDENDA <Act No. 12844, Nov. 19, 2014>**

Article 1 (Enforcement Date)

▣ **ADDENDUM <Act No. 13576, Dec. 22, 2015>**

This Act shall enter into force six months after its promulgation.

▣ **ADDENDUM <Act No. 14162, May 29, 2016>**

This Act shall enter into force on the date of its promulgation.

▣ **ADDENDUM <Act No. 14762, Apr. 18, 2017>**

This Act shall enter into force on the date of its promulgation.

⊕ **ADDENDA <Act No. 14839, Jul. 26, 2017>**

Article 1 (Enforcement Date)

▣ **ADDENDUM <Act No. 15044, Nov. 28, 2017>**

This Act shall enter into force on the date of its promulgation.

⊖ **ADDENDA <Act No. 16441, Aug. 20, 2019>**

Article 1 (Enforcement Date)

This Act shall enter into force on March 1, 2020: Provided, That the amended provisions of Article 13-2 shall enter into force on September 1, 2019.

Article 2 (Exceptions to Transfer of Duties from Autonomous Committees)

(1) Where the amended provisions of Article 13-2 are applied before March 1, 2020, "deliberative committee" shall be construed as "autonomous committee".

(2) Where an autonomous committee is organized before this Act enters into force, the representatives elected directly by a general parents' meeting may be commissioned to join membership of the autonomous committee, who account for at least 1/3 of the total number of members of the autonomous committee, as prescribed by Presidential Decree.

Article 3 (Transitional Measures concerning Matters to Be Deliberated by Autonomous Committees)

Notwithstanding the amended provisions of Article 12, matters being deliberated by an autonomous committee as at the time this Act enters into force shall be deliberated by the autonomous committee as prescribed by the previous provisions. In such cases, parent members shall maintain their membership despite the graduation of students.

Article 4 (Transitional Measures concerning Filing for Appeals)

(1) Notwithstanding the amended provisions of Article 17-2, where measures under Articles 16 (1) and 17 (1) are imposed by the head of a school before this Act enters into force, the person concerned may file an appeal pursuant to the previous provisions.

(2) To persons whose appeals are in process pursuant to previous Article 17-2 as at the time this Act enters into force, the previous provisions shall apply.